

Muhar Shri v. State of U.P.

Allahabad High Court · Division Bench · 10 February 2020 · WRIT - C No. - 4684 of 2020 · **Writ disposed; cl. 6.5 representation to EE; two-month coercive stay**

HEADNOTE

Writ challenging a recovery citation of Rs.70,030, by persons who denied even being consumers, was disposed of by directing a detailed representation to the Executive Engineer under clause 6.5 of the U.P. Electricity Supply Code, 2005, to be decided in accordance with law within two months, with a matching stay of coercive action on the citation dated 14.10.2019.

FACTUAL SUMMARY

Recovery citation dated 14 October 2019 for Rs.70,030 was issued against Muhar Shri and three others. They approached the Allahabad High Court claiming they were not consumers of electricity under the Electricity Act. Counsel for the licensee submitted that the controversy concerned the amount of the bill, which the Executive Engineer could decide under clause 6.5 of the U.P. Electricity Supply Code, 2005. The Court did not examine consumer status or the billed amount.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing dispute / representation to Executive Engineer

HOLDING

Where a recovery citation is issued and the licensee characterises the controversy as a dispute about the amount of the bill, the writ court may dispose of the petition—without deciding whether the petitioners are consumers or the billed amount—by directing them to file a detailed representation before the Executive Engineer under clause 6.5 of the U.P. Electricity Supply Code, 2005, for consideration and an order in accordance with law within a fixed time, with a short stay of coercive recovery on the citation. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy Writ against a recovery citation was disposed of by relegating the petitioners to the Executive Engineer under clause 6.5 rather than deciding consumer status or the billed amount on the writ side. ¶ 1

6.5-representation-as-appropriate-remedy The Court directed a detailed representation to the Executive Engineer, to be considered and decided in accordance with law within two months. ¶ 1

billing-dispute-question-of-fact-executive-engineer-clause-6.5 The licensee's characterisation of the matter as a dispute about the amount of the bill, to be dealt with by the Executive Engineer under clause 6.5, was accepted as the forum for decision. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONERS WERE CONSUMERS OF ELECTRICITY UNDER THE ELECTRICITY ACT

¶ 1

NOT DECIDED — CORRECTNESS OF THE BILLED AMOUNT OF RS.70,030 AND VALIDITY OF THE RECOVERY CITATION DATED 14.10.2019 ON MERITS

¶ 1

